

were other limits, but they were few in number and similarly specifically defined.²

At the time of the drafting and adoption of our Constitution it was considered elementary that the prerogative of the English Crown could be exercised upon conditions:

"It seems agreed, That the king may extend his mercy on what terms he pleases, and consequently may annex to his pardon any condition that he thinks fit, whether precedent or subsequent, on the performance whereof the validity of the pardon will depend." 2 W. Hawkins, *Pleas of the Crown* 557 (6th ed. 1787).

Various types of conditions, both penal and nonpenal in nature, were employed.³ For example, it was common for a pardon or commutation to be granted on condition that the felon be transported to another place, and indeed our own Colonies were the recipients of numerous subjects of "banishment." This practice was never questioned despite the fact that British subjects generally could not be forced to leave the realm without an Act of Parliament and banishment was rarely authorized as a punishment for crime. The idea later developed that the subject's consent to transportation was necessary, but in most cases he was simply "agreeing" that his life should be spared. Thus, the requirement of consent was a legal fiction at best; in reality, by granting pardons or commutations conditional upon banishment, the Crown was exercising a power that was the equivalent and completely

²See 3 E. Coke, *Institutes* 233 (6th ed. 1680); 5 J. Comyns, *Digest of the Laws of England* 230 (5th ed. 1822); J. Chitty, *Prerogatives of the Crown* 90-91 (1820); 4 W. Blackstone, *Commentaries* *398.

³Typical conditions were that the felon be confined at hard labor for a stated period of time, 4 Blackstone, *supra*, n. 2, at *401, or that he serve in the Armed Forces. 2 D. Hume, *Crimes* 481 (2d ed. 1819).